

HOUSE BILL No. 1021

DIGEST OF INTRODUCED BILL

Citations Affected: IC 5-2-22-1; IC 20-26-5-11.2; IC 31-9-2-84.8; IC 35-31.5-2; IC 35-46-1-4; IC 35-47-2-14.5.

Synopsis: Firearm storage. Provides that a person having the care of a dependent who recklessly, knowingly, or intentionally fails to secure a loaded firearm in the person's residence or vehicle commits neglect of a dependent, a Level 6 felony, if the dependent uses the firearm to cause bodily injury or death to any person. Enhances the offense to a Level 5 felony in particular instances. Specifies exceptions and defenses. Specifies sign requirements for retail dealers. Defines terms and makes conforming amendments.

Effective: July 1, 2026.

Gore

December 1, 2025, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1021

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 5-2-22-1, AS AMENDED BY P.L.161-2018, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The following definitions apply throughout this chapter:

(1) "Crime of child abuse" means:

(A) neglect of a dependent (IC 35-46-1-4) if the dependent is a child and the offense is committed under:

(i) IC 35-46-1-4(a)(1);

(ii) IC 35-46-1-4(a)(2); ~~or~~

(iii) IC 35-46-1-4(a)(3); ~~or~~

(iv) IC 35-46-1-4(d);

(B) child selling (~~IC 35-46-1-4(d)~~); **(IC 35-46-1-4(e))**;

(C) a sex offense (as defined in IC 11-8-8-5.2) committed against a child; or

(D) battery against a child under:

(i) IC 35-42-2-1(e)(3) (battery on a child);

(ii) IC 35-42-2-1(g)(5)(B) (battery causing bodily injury to



a child);

(iii) IC 35-42-2-1(j) (battery causing serious bodily injury to a child); or

(iv) IC 35-42-2-1(k) (battery resulting in the death of a child).

(2) "Office" refers to the office of judicial administration created under IC 33-24-6-1.

(3) "Registry" means the child abuse registry established under section 2 of this chapter.

SECTION 2. IC 20-26-5-11.2, AS AMENDED BY P.L.1-2025, SECTION 187, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11.2. (a) This section applies to:

(1) a school corporation;

(2) a charter school;

(3) a state accredited nonpublic school; and

(4) an entity with which the school corporation, charter school, or state accredited nonpublic school contracts for services;

concerning employees of the school corporation, charter school, state accredited nonpublic school, or entity who are likely to have direct, ongoing contact with children within the scope of the employees' employment.

(b) Subject to section 10(k) of this chapter and subsection (f), a school corporation, charter school, state accredited nonpublic school, or entity may not employ or contract with, and shall terminate the employment of or contract with, an individual convicted of any of the following offenses:

(1) Murder (IC 35-42-1-1).

(2) Causing suicide (IC 35-42-1-2).

(3) Assisting suicide (IC 35-42-1-2.5).

(4) Voluntary manslaughter (IC 35-42-1-3).

(5) Aggravated battery (IC 35-42-2-1.5).

(6) Kidnapping (IC 35-42-3-2).

(7) A sex offense (as defined in IC 11-8-8-5.2).

(8) Carjacking (IC 35-42-5-2) (repealed).

(9) Arson (IC 35-43-1-1).

(10) Public indecency (IC 35-45-4-1(a)(3), IC 35-45-4-1(a)(4), and IC 35-45-4-1(b)) committed:

(A) after June 30, 2003; or

(B) before July 1, 2003, if the person committed the offense by, in a public place, engaging in sexual intercourse or other sexual conduct (as defined in IC 35-31.5-2-221.5).

(11) Neglect of a dependent as a Class B felony (for a crime



committed before July 1, 2014) or a Level 1 felony or Level 3 felony (for a crime committed after June 30, 2014) (IC 35-46-1-4(b)(2) and IC 35-46-1-4(b)(3)).

(12) Child selling (~~IC 35-46-1-4(d)~~): **(IC 35-46-1-4(e))**.

(13) An offense relating to material or a performance that is harmful to minors or obscene under IC 35-49-3.

If an entity described in subsection (a)(4) obtains information that an individual employed by the entity who works at a particular school corporation, charter school, or state accredited nonpublic school has been convicted of an offense described in this subsection, the entity shall immediately notify the school corporation, charter school, or state accredited nonpublic school of the employee's conviction.

(c) After June 30, 2023, a school corporation, charter school, state accredited nonpublic school, or entity may employ or contract with an individual convicted of any of the following offenses if a majority of the members elected or appointed to the governing body of the school corporation, or the equivalent body for a charter school, approves the employment or contract as a separate, special agenda item, or if the school administrator of a state accredited nonpublic school informs the administrator's appointing authority of the hiring:

(1) An offense relating to operating a motor vehicle while intoxicated under IC 9-30-5.

(2) Reckless homicide (IC 35-42-1-5).

(3) Battery (IC 35-42-2-1).

(4) Domestic battery (IC 35-42-2-1.3).

(5) Criminal confinement (IC 35-42-3-3).

(6) Public indecency (IC 35-45-4-1(a)(1) or IC 35-45-4-1(a)(2)) committed:

(A) after June 30, 2003; or

(B) before July 1, 2003, if the person committed the offense by, in a public place, engaging in sexual intercourse or other sexual conduct (as defined in IC 35-31.5-2-221.5).

(7) Contributing to the delinquency of a minor (IC 35-46-1-8).

(8) An offense involving a weapon under IC 35-47 or IC 35-47.5.

(9) An offense relating to controlled substances under IC 35-48-4, other than an offense involving marijuana or paraphernalia used to consume marijuana.

(d) An individual employed by a school corporation, charter school, state accredited nonpublic school, or entity described in subsection (a) shall notify the governing body of the school, if during the course of the individual's employment, the individual:

(1) is convicted in Indiana or another jurisdiction of an offense



described in subsection (b) or (c); or

(2) is the subject of a substantiated report of child abuse or neglect.

(e) A school corporation, charter school, state accredited nonpublic school, or entity may use information obtained under section 10 of this chapter concerning an individual being the subject of a substantiated report of child abuse or neglect as grounds to not employ or contract with the individual.

(f) A school corporation, charter school, state accredited nonpublic school, or entity is not required to consider whether information concerning an individual's conviction:

(1) requires the school or entity to:

(A) not employ; or

(B) not contract with; or

(2) constitutes grounds to terminate the employment of or contract with;

an individual under subsection (b) if the individual's conviction is reversed, vacated, or set aside.

(g) Nothing in this section prohibits a school corporation, charter school, state accredited nonpublic school, or entity from establishing procedures to verify the accuracy of the information obtained under section 10 of this chapter concerning an individual's conviction.

(h) A school corporation, charter school, or state accredited nonpublic school may not hire or contract with an individual:

(1) who is required to wear an ankle monitor as the result of a criminal conviction;

(2) who entered into an agreement to settle an allegation of misconduct relating to the health, safety, or well-being of a student at a school corporation, charter school, or state accredited nonpublic school, if the agreement included a nondisclosure agreement covering the alleged misconduct; or

(3) who, in an academic environment, engaged in a course of conduct involving repeated or continuing contact with a child that is intended to prepare or condition the child for sexual activity (as defined in IC 35-42-4-13);

unless a majority of the members elected or appointed to the governing body of the school corporation, or the equivalent body for a charter school, approves the hire or contract as a separate, special agenda item, or unless the school administrator of a state accredited nonpublic school informs the administrator's appointing authority of the hiring.

(i) For purposes of subsection (h), "misconduct relating to the health, safety, or well-being of a student" includes:



- 1 (1) engaging in a pattern of flirtatious or otherwise inappropriate
- 2 comments;
- 3 (2) making any effort to gain unreasonable access to, and time
- 4 alone with, any student with no discernible educational purpose;
- 5 (3) engaging in any behavior that can reasonably be construed as
- 6 involving an inappropriate and overly personal and intimate
- 7 relationship with, conduct toward, or focus on a student;
- 8 (4) telling explicit sexual jokes and stories;
- 9 (5) making sexually related comments;
- 10 (6) engaging in sexual kidding or teasing;
- 11 (7) engaging in sexual innuendos or making comments with
- 12 double entendre;
- 13 (8) inappropriate physical touching;
- 14 (9) using spoken, written, or any electronic communication to
- 15 importune, invite, participate with, or entice a person to expose or
- 16 touch the person's own or another person's intimate body parts or
- 17 to observe the student's intimate body parts via any form of
- 18 computer network or system, any social media platform,
- 19 telephone network, or data network or by text message or instant
- 20 messaging;
- 21 (10) sexual advances or requests for sexual favors;
- 22 (11) physical or romantic relationship including but not limited to
- 23 sexual intercourse or oral sexual intercourse;
- 24 (12) discussion of one's personal romantic or sexual feelings or
- 25 activities;
- 26 (13) discussion, outside of a professional teaching or counseling
- 27 context endorsed or required by an employing school district, of
- 28 a student's romantic or sexual feelings or activities;
- 29 (14) displaying, sharing, or transmitting pornographic or sexually
- 30 explicit materials;
- 31 (15) any physical contact that the student previously has indicated
- 32 is unwelcome, unless such contact is professionally required, such
- 33 as to teach a sport or other skill, or to protect the safety of the
- 34 student or others;
- 35 (16) other than for purposes of addressing student dress code
- 36 violations or concerns, referencing the physical appearance or
- 37 clothes of a student in a way that could be interpreted as sexual;
- 38 and
- 39 (17) self-disclosure or physical exposure of a sexual, romantic, or
- 40 erotic nature.

41 SECTION 3. IC 31-9-2-84.8, AS AMENDED BY P.L.142-2020,
 42 SECTION 34, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 84.8. "Nonwaivable offense", for purposes of this title, means a conviction of any of the following felonies:

- (1) Murder (IC 35-42-1-1).
- (2) Causing suicide (IC 35-42-1-2).
- (3) Assisting suicide (IC 35-42-1-2.5).
- (4) Voluntary manslaughter (IC 35-42-1-3).
- (5) Involuntary manslaughter (IC 35-42-1-4).
- (6) Reckless homicide (IC 35-42-1-5).
- (7) Feticide (IC 35-42-1-6).
- (8) Battery (IC 35-42-2-1) within the past five (5) years.
- (9) Domestic battery (IC 35-42-2-1.3).
- (10) Aggravated battery (IC 35-42-2-1.5).
- (11) Criminal recklessness (IC 35-42-2-2) within the past five (5) years.
- (12) Strangulation (IC 35-42-2-9).
- (13) Kidnapping (IC 35-42-3-2).
- (14) Criminal confinement (IC 35-42-3-3) within the past five (5) years.
- (15) Human and sexual trafficking (IC 35-42-3.5).
- (16) A felony sex offense under IC 35-42-4.
- (17) Arson (IC 35-43-1-1) within the past five (5) years.
- (18) Incest (IC 35-46-1-3).
- (19) Neglect of a dependent (IC 35-46-1-4(a), ~~and IC 35-46-1-4(b)~~, **IC 35-46-1-4(b), and IC 35-46-1-4(d)**).
- (20) Child selling (~~IC 35-46-1-4(d)~~; **(IC 35-46-1-4(e))**).
- (21) Reckless supervision (IC 35-46-1-4.1).
- (22) Nonsupport of a dependent child (IC 35-46-1-5) within the past five (5) years.
- (23) Operating a motorboat while intoxicated (IC 35-46-9-6) within the past five (5) years.
- (24) A felony involving a weapon under IC 35-47 within the past five (5) years.
- (25) A felony relating to controlled substances under IC 35-48-4 within the past five (5) years.
- (26) An offense relating to material or a performance that is harmful to minors or obscene under IC 35-49-3.
- (27) A felony under IC 9-30-5 within the past five (5) years.
- (28) A felony related to the health or safety of a child (as defined in IC 31-9-2-13(h)) or an endangered adult (as defined in IC 12-10-3-2).

SECTION 4. IC 35-31.5-2-19.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS



[EFFECTIVE JULY 1, 2026]: **Sec. 19.5. "Antique firearm", for purposes of IC 35-46-1-4(d), has the meaning set forth in 18 U.S.C. 921(a)(16).**

SECTION 5. IC 35-31.5-2-171.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 171.3. "Inoperable firearm", for purposes of IC 35-46-1-4(d), means a firearm that is permanently unable to discharge or expel a projectile by means of an explosion. The term does not include a firearm that may be modified to discharge or expel a projectile by means of an explosion.**

SECTION 6. IC 35-31.5-2-188.1 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 188.1. "Loaded firearm", for purposes of section 288.5 of this chapter and IC 35-46-1-4(d), means a firearm with one (1) or more of the following characteristics:**

- (1) A bullet, cartridge, projectile, or round in the breech, chamber, or cylinder of the firearm.
- (2) Ammunition in close proximity to the firearm so that a person can readily insert the ammunition into the firearm.
- (3) Ammunition that is:
 - (A) inserted or stored inside:
 - (i) the firing chamber;
 - (ii) a cylinder; or
 - (iii) a fixed magazine;
 - of the firearm; or
 - (B) housed or stored inside a detachable magazine for the firearm.

SECTION 7. IC 35-31.5-2-288.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 288.5. "Secure a loaded firearm", for purposes of IC 35-46-1-4(d), means to prevent unauthorized access to a loaded firearm. The term includes the following:**

- (1) Placing or storing the firearm in a locked container.
- (2) Temporarily rendering the firearm inoperable by:
 - (A) use of a trigger lock, bore lock, cable lock, or comparable device; or
 - (B) disassembling the firearm in a manner that prevents the firearm from operating.

SECTION 8. IC 35-46-1-4, AS AMENDED BY P.L.170-2021, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4. (a) A person having the care of a dependent,**



whether assumed voluntarily or because of a legal obligation, who knowingly or intentionally:

- (1) places the dependent in a situation that endangers the dependent's life or health;
 - (2) abandons or cruelly confines the dependent;
 - (3) deprives the dependent of necessary support; or
 - (4) deprives the dependent of education as required by law;
- commits neglect of a dependent, a Level 6 felony.

(b) However, the offense is:

- (1) a Level 5 felony if it is committed under subsection (a)(1), (a)(2), or (a)(3) and:

- (A) results in bodily injury; or

- (B) is:

- (i) committed in a location where a person is violating IC 35-48-4-1 (dealing in cocaine or a narcotic drug), IC 35-48-4-1.1 (dealing in methamphetamine), or IC 35-48-4-1.2 (manufacturing methamphetamine); or
 - (ii) the result of a violation of IC 35-48-4-1 (dealing in cocaine or a narcotic drug), IC 35-48-4-1.1 (dealing in methamphetamine), or IC 35-48-4-1.2 (manufacturing methamphetamine);

- (2) a Level 3 felony if it is committed under subsection (a)(1), (a)(2), or (a)(3) and results in serious bodily injury;

- (3) a Level 1 felony if it is committed under subsection (a)(1), (a)(2), or (a)(3) by a person at least eighteen (18) years of age and results in the death or catastrophic injury of a dependent who is less than fourteen (14) years of age or in the death or catastrophic injury of a dependent of any age who has a mental or physical disability; and

- (4) a Level 5 felony if it is committed under subsection (a)(2) and consists of cruel confinement or abandonment that:

- (A) deprives a dependent of necessary food, water, or sanitary facilities;

- (B) consists of confinement in an area not intended for human habitation; or

- (C) involves the unlawful use of handcuffs, a rope, a cord, tape, or a similar device to physically restrain a dependent.

(c) It is a defense to a prosecution based on an alleged act under this section that:

- (1) the accused person left a dependent child who was, at the time the alleged act occurred, not more than thirty (30) days of age:

- (A) in a newborn safety device described in



- 1 IC 31-34-2.5-1(a)(2), IC 31-34-2.5-1(a)(3),
 2 IC 31-34-2.5-1(a)(4), or IC 31-34-2.5-1(a)(5); or
 3 (B) with a person who is an emergency medical services
 4 provider (as defined in IC 16-41-10-1) who took custody of the
 5 child under IC 31-34-2.5;
 6 when the prosecution is based solely on the alleged act of leaving
 7 the child in the newborn safety device or with the emergency
 8 medical services provider and the alleged act did not result in
 9 bodily injury or serious bodily injury to the child; or
 10 (2) the accused person, in the legitimate practice of the accused
 11 person's religious belief, provided treatment by spiritual means
 12 through prayer, in lieu of medical care, to the accused person's
 13 dependent.
 14 **(d) This subsection does not apply to the following:**
 15 **(1) An inoperable firearm.**
 16 **(2) An antique firearm.**
 17 **(3) A person who carries a firearm:**
 18 **(A) on his or her person; or**
 19 **(B) in such proximity to his or her person that the firearm**
 20 **may be readily retrieved and used.**
 21 **(4) Any use of a firearm described in IC 35-47-10-1(b).**
 22 **(5) Any possession of a firearm described in IC 34-28-7.**
 23 **A person having the care of a dependent, whether assumed**
 24 **voluntarily or because of a legal obligation, who recklessly,**
 25 **knowingly, or intentionally fails to secure a loaded firearm in the**
 26 **person's residence or vehicle, commits neglect of a dependent, a**
 27 **Level 6 felony, if the dependent uses the firearm to cause bodily**
 28 **injury or death to any person. However, the offense is a Level 5**
 29 **felony if the person has a prior unrelated conviction for neglect of**
 30 **a dependent under this section. It is a defense to a prosecution**
 31 **under this subsection that the injury or death inflicted on the other**
 32 **person occurred during a lawful act of self-defense or defense of a**
 33 **third party.**
 34 **(d) (e) Except for property transferred or received:**
 35 **(1) under a court order made in connection with a proceeding**
 36 **under IC 31-15, IC 31-16, IC 31-17, or IC 31-35 (or IC 31-1-11.5**
 37 **or IC 31-6-5 before their repeal); or**
 38 **(2) under section 9(d) of this chapter;**
 39 **a person who transfers or receives any property in consideration for the**
 40 **termination of the care, custody, or control of a person's dependent**
 41 **child commits child selling, a Level 6 felony.**
 42 **SECTION 9. IC 35-47-2-14.5 IS ADDED TO THE INDIANA**



1 CODE AS A NEW SECTION TO READ AS FOLLOWS
2 [EFFECTIVE JULY 1, 2026]: **Sec. 14.5. (a) A retail dealer shall**
3 **conspicuously display at the site of the retail dealer's business a**
4 **sign with the following language:**

5 "IT IS A FELONY FOR A PERSON HAVING THE CARE OF
6 A DEPENDENT TO FAIL TO SECURE A LOADED FIREARM
7 IN THE PERSON'S RESIDENCE OR VEHICLE, IF THE
8 DEPENDENT USES THE FIREARM TO CAUSE BODILY
9 INJURY OR DEATH."

10 (b) A retail dealer who knowingly or intentionally violates
11 subsection (a) commits a Class C infraction. However, the violation
12 is a Class A infraction if the retail dealer has a prior unrelated
13 adjudication for the violation.

